

CHAPTER 21.

An Act to make provision for giving effect to a Convention signed the Fifth day of March Nineteen hundred and two, in relation to Sugar. [11th August 1903.]

WHEREAS His Majesty the King and divers foreign Powers have entered into a Convention signed the Fifth day of March, Nineteen hundred and two, in relation to sugar; and it is expedient to give effect to that Convention:

And whereas provision is made under Article VII. of the Convention for the establishment of a permanent commission with a permanent bureau attached to it charged with watching the execution of the provisions of the Convention (in this Act referred to as the Permanent Commission):

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) Where it is reported by the Permanent Commission that any direct or indirect bounty is granted in any foreign country on the production or export of sugars, His Majesty may, by Order in Council, make a prohibition order, that is to say, an order prohibiting sugar from that foreign country to be imported or brought into the United Kingdom, subject to any provision which may be made by Parliament, in lieu of such prohibition, to impose a special duty on such sugar in accordance with the Convention.

Powers with respect to bounty-fed sugar.

(2) While a prohibition order is in force, the laws relating to Customs shall apply as if the sugar, in respect of which the Order is made, were specified in the table of prohibitions and restrictions inwards, contained in section forty-two of the Customs Consolidation Act, 1876.

39 & 40 Vict. c. 36.

(3) His Majesty may, by Order in Council, make such regulations as appear to him necessary, in relation to any Order under this section, and may by those regulations in particular require the origin of all sugar imported or brought into the United Kingdom, whether in transit or otherwise, to be proved by such certificate or other evidence as may be provided in the Order.

(4) An Order made under this section shall not apply to molasses nor, except as expressly mentioned in this section, to sugar in transit.

(5) Any share of the expenses on account of the organisation and working of the Permanent Commission, as determined in pursuance of the Convention, and any expenses incurred in connection with the attendance of delegates at the Commission shall be paid out of moneys provided by Parliament.

2. His Majesty may, by Order in Council, declare that every sugar factory and sugar refinery and factory for the extraction of sugar from molasses in the United Kingdom shall be subject to

Regulations as to sugar refineries and factories.

the supervision either of the Commissioners of Customs or of the Commissioners of Inland Revenue; and those Commissioners may respectively make regulations—

- (a) for prohibiting the carrying on of any such factory or refinery otherwise than by persons authorised and in premises approved by the Commissioners and, if required, entered for the purpose; and for giving officers of the Commissioners powers of entry into any part of the premises at any time; and
- (b) for securing the payment of duty (including any charge which there is power to make under the law for the time being in force, on the delivery of goods for home consumption), and regulating the time and mode of and the general arrangements to be made for that payment, and for preventing any claim to drawback where duty has not been paid, and for regulating the removal of any sugar to or from the premises, the storage of finished sugar and the return of sugar for the purpose of further refinement; and
- (c) for making such entries in relation to the various processes in the manufacture of sugar as may be required by the Commissioners, and for enabling the officers of the Commissioners to inspect those entries; and
- (d) for applying any provisions of the laws of Customs (including the Manufactured Tobacco Act, 1863) or of the laws of Excise; and
- (e) for attaching penalties not exceeding fifty pounds to any breach of or failure to comply with any regulation made under this section, and providing for the recovery and application of the penalty, and for the forfeiture of any article in respect of which any offence against the regulations is committed;

and the duties payable under the Finance Act, 1901, or any Act amending that Act, shall be taken on the delivery of any article from the factory or refinery, and shall be the same as those payable on the like articles on importation.

26 & 27 Vict.
c. 7.

Revocation of
orders and
saving.

3.—(1) His Majesty may by Order in Council revoke, alter or add to any Order in Council made under this Act.

(2) Nothing in this Act shall apply to glucose.

Short title.

4. This Act may be cited as the Sugar Convention Act, 1903.

CHAPTER 22.

An Act to make further provision for the construction of works in the United Kingdom and elsewhere for the purposes of the Royal Navy. [11th August 1903.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :